

4 FEDERALISM

Chapter one

The Context of the Federal System in Ethiopia

Part One- HISTORIC ETHIOPIA AS A DE FACTO FEDERATION

Except for the twentieth century, a cursory reading of history reveals that Ethiopia has for the most part been under a decentralized rather than a centralized system of governance.

One observes a co-existence of a duality of authorities, mainly that of the Imperial throne, representing the center and a number of *provincial nobilities* effectively exercising decentralized power.

regionalism or provincialism, one essential element of diversity that defined the Ethiopian state, characterized the relationship between the center and the provinces.

The cluster of kingdoms existed effectively for centuries until they were finally incorporated into the Ethiopian state in the second half of the 19th century. there always existed a network of trade relationships as well as relationships based on religion. The imperial throne served as a symbol of unity and the political system combined a balance of forces between the monarchy and regional nobility.

The process of centralization, modernization, nation building shined during Haile Silassie.

the religious, lingual, cultural as well as political and economic dominance gave birth to the ‘question of nationalities.’the state failed to accommodate them.

THE PROCESS OF CENTRALIZATION (1930-1991)

***The Era of Written Constitutions**

The 1931 Constitution- The first measure the Emperor took along the process of centralization was the grant of the Constitution.

the Constitution’s major outcome was its ability to establish the legal framework within which governmental power was to be channeled and distributed. It was aimed against the personal, arbitrary and ill-defined powers traditionally held by the nobility.

The 1955 Revised Constitution- continued to reinforce the process of centralization.

a significant political factor that influenced the revision of the 1955 Constitution was The Ethio-Ertirean federation.

Interestingly enough it also contained an elaborate regime of civil and political rights for the *subjects*.

A basic development was the introduction of the representative principle for the chamber of Deputies whose members were elected on the basis of universal adult suffrage.

was a legal charter for the consolidation of absolutism.

The 1987 Constitution- The draft constitution was completed in 1986 and was formally submitted to public debate and ratified by a referendum in February 1987.

In an election in which a single party, WPE members, participated members of the National *Shengo* (parliament) were elected.

The Constitution stated that Ethiopia is a unitary state constituting administrative and autonomous regions.¹ It stated that the nationalities are equal and ensured the equality of nationalities.

each nationality would have regional autonomy to decide on matters concerning its affairs. Eritrea but without its Afar inhabited areas, Tigray, Assab for the Afars, Dire Dawa for the Issas, and Ogaden.

¹ See Article 59.

the WPE played this role and in the end not even the minimal versions of self-autonomy were put into practice. The Constitution in dealing with regional autonomy did not offer any hope in terms of reconciliation for peace with the opposition.

***THE TRANSITIONAL PERIOD (1991-1994)**

a national conference for this purpose was convened in Addis Ababa from July 1-5, 1991. The Conference resulted in the signing of the Charter by the representatives of some 31 political parties, the creation of an 87 seat Council of Representatives and the establishment of Transitional Government of Ethiopia (TGE).

The Charter established the framework for the provisional government and guaranteed nationalities to preserve their identity, administer their own affairs within their own defined territory, the right to participate in the central government based on fair and proper representation, and the right to self-determination.

The establishment of national regional self-governments was provided for in another proclamation. the proclamation enumerated sixty-four identified nations, nationalities and peoples and set up fourteen regions.

The striking point is that nowhere do the charter and the proclamation employ the term federation in either their preamble or specific legal provisions, although both documents ensure each nationality with the right to self-determination including secession.

If one looks at the legal framework from the angle of a federal system, there is no doubt that the balance swayed in favor of the center. the enumeration of the powers of the central government was not exhaustive and contained broad terms.

In the language of the Charter, the Transitional Government shall exercise all legal and political power for the governance of Ethiopia. In no unequivocal manner, the proclamation also stated that national regional transitional self-governments are in every respect, entities subordinate to the central TFG.

One of the major tasks of the transitional Council of Representatives was to direct the process of constitution making and pave the way for a new national election based on the ratified constitution.

*there is a widely held view that considers constitutions merely as instruments for promoting the political will of the victorious ones/ruling elites of the time and not of the people per se and hence are viewed as

instruments of submission, hence the saying “*Negus Aykeses Semay Aytates*”.

*Many of the constitutions have not been results of negotiated outcomes or of a publicly held consensus.

Chapter Two

Some Common Features among Federations

INTRODUCTION

in the contemporary world, federalism as a political idea remains still popular for reconciling unity and diversity under a single political system. (despite USSR & Yugoslav case)

Federalism as a political concept and federations in the form of institutions seem to provide ‘the closest institutional solution’ combining shared rule for some commonly shared purposes and self-rule for other purposes of regional interest in the world today.

federalism is also getting popular because it is employed as a means of solving ethnic conflicts.

FEDERALISM AND FEDERATIONS

Within the context of the older federations, federalism might mean the joining together of some semi-autonomous units for some common goals.

Within the context of the EU it might refer to the coming together of the bulk of European states and the emergence of new institutions combining confederal as well as federal features.

Within the context of former communist federations, federalism may mean the existence of some features associated with the division of powers in constitutional form rather than in operational reality.

In the African context, federalism is associated with the colonial experience of divide and rule. It means different things to different people depending on historical and cultural context.

***federalism** refers to an ideology: a normative principle, while federations refer to institutions. Federation is descriptive concept referring to the actual system of governments.¹⁴ Federalism as a political philosophy is essentially an organizing principle.

Federations constitute the institutional and structural techniques for achieving one of the goals of federalism.

¹⁴ King, *supra* note 11 at 74.

-In **confederation** the central government had no direct authority to act upon the people.confederations occur when several pre-existing polities join together to form a common government for certain limited purposes such as foreign relations and defense, but the common government is dependent upon the states.

-As opposed to confederations, in decentralized governments the units, often called local governments, are subordinate to the center. However wide powers they may exercise, the local governments are merely creations of the center by a statute and as a result they may be wiped out by the center at any time.

-in decentralized systems, the emphasis is on self-rule rather than on shared rule. In a federation, the division of power is constitutionally guaranteed and the states are not creations of the federal government. Both the federal government and the states derive their authority from the federal constitution and as a result neither level can change the terms of the compact as enshrined in the constitution.

SOME COMMON FEATURES AMONG FEDERATIONS

***Division of Power-** leg, exec, judicial & financial functions is constitutionally divided b/n the federal govt & the states, & that both orders of govt are autonomous with respect to the powers granted to them.

***Written and Supreme Federal Constitution-** Federations originate from particular bargains. Written constitutions are, therefore, necessary records of the terms of the bargain. To write and adopt a constitution is to agree to the bargain itself.

The terms of the agreement, which establish the federal government and the states and which distribute powers between them, must be enshrined in a supreme federal constitution, which is binding.

It is supreme federal constitution b/c from w/c the federal govt and the states derive their authority.

-Federalism is a covenant b/c federations are considered to have resulted from the federal idea of compact, implying an agreement that is freely and mutually consented to.

But the assertion that federations are based on contracts needs to be adopted with a serious qualification.

1st, federations unlike confederations are not exclusively based on the presumed existence of sovereign states.

2nd, even referring to the states, they do not in all cases freely agree to enter or remain in the union.

3rd, even if it results from contracts, it still has a *unilateral* character. If we focus on the center-seeking federations (as in Switzerland and the US), the central government, crucial for the federation is absent during the federal bargain. In centrifugal federations (qedmo begara yenoru gizatoch yalubet Eth.), it could be said that the states are absent during the federal bargain. b/c zey were not in existence unlike Confederations.

***Rigid Constitution-** it must be rigid and require the participation of both the federal government and the states for their amendment.

Constitutions change and adapt and an agreed method for achieving constitutional adjustments as the need arises is often the key to the continued success of the federation.

constr amended according to procedures that differ from z procedures for amending ordinary laws. The Ethiopian Constitution is perhaps more rigid compared to the other federations.

***Umpiring the Federation-** power to see the constitutionality of laws & settlement of disputes is vested to an impartial body, independent of the federation and the states.

There must be an umpire to rule on the interpretation of cases involving the division of power specifically and on the rule of constitutionality in general.

In US Supreme Court, in Switzerland through a referendum, In Germany the Constitutional Court, In Ethiopia the HoF.

***Origin of Federations and Territorial Autonomy of the States-** The fact that federalism is considered the territorial distribution of power presupposes that the states have a stable territory.

in centrifugal federations there is a tendency to think that the states prior to the establishment of the federation or during the formative stages did not reflect major diversities that define the states and demands for territorial adjustments.

-centrifugal or 'holding together' federations are federations resulting from either a previously unitary state or a retiring colonial state.

- 'coming together' federations are existing states or zero. They are center-seeking federations

***Existence of two or more orders of government**

Chapter Three

Federations and Second Chambers

RATIONALE

With in Bicameral legislatures, federations are designed carefully with institutions that reflect the people as a whole on the one hand and the people as parts, often identified as states, on the other.

Representation by territories and representation by size of population as distinct principles, operate in federations.

the lower house is often uniformly organized on the principle of proportional representation and there is a less strong federal element in it. But the upper chamber is often expected to reflect some federal idea and its legislative role is defended.

The first rationale emanates from the qualified application of the concept of sovereignty in federations, limit majority rule. Second chambers in federations provide a protective mechanism to smaller and more sparsely populated units feel potentially threatened by more densely populated states.

The second explanation emanates from division of power, in itself is premised on the idea that federations are principally organized on the concept of ‘self-rule’ for some purposes and ‘shared-rule’ for other purposes.

Self-rule means that an entity can decide certain matters autonomously over competencies within an overarching federal system.

Shared rule refers to shared competencies as well as shared institutions through which federal units are accorded special participation and input in the decision-making process at the level of the encompassing entity.

*z FDREC, in the sense of having two chambers, the legislative power of the latter is very much contested. The only provisions where one may by stretch of imagination trace legislative functions are Articles 99, 62(7) and 105.

It declares: ‘The HPR shall have the power of legislation in all matters assigned by this Constitution to Federal jurisdiction.’

4 z nationalities, the right to be represented in federal government stipulated by Article 39(3) could not be pushed further to include the federal legislature. unlike the other federations, the Ethiopian Constitution fails to entrench the states or to use the terms of the

Constitution, the nations, nationalities and the peoples to be part of the federal law-making process.

Art 39(3) is 4 z representations in z executive, HoF & other federal organs.

*Ethiopian Constitution ‘betrays’ the federal idea significantly. The territorial units have neither the minimum participatory role nor the even greater functions assigned to upper chambers.being hijacked by a few more populous ethnic groups.

*It betrays federal principle (incorporation of the states in the federal law-making process and federal practice) b/c HoF has no power of law making. Nor equitable representation can be applied in z HPR.

COMPOSITION

The principle of equality of regions- In the United States, the Senate embodying the principle of equal representation of the states, notwithstanding disparities in their population, was the price that the larger states had to pay for the participation of the smaller states in the federation. Accordingly, each of the 50 states enjoys formal equal representation in the upper house

The less populous states often fight to safeguard their interests from being swamped by the legislature composed by a popularly elected lower house. Accordingly, second chambers based on equal state representation are instituted to take care of the concerns of the less populous states.

The same principle is adopted under the Swiss Constitution, except for introducing the notion of full and half Cantons. Six half Cantons elect one and the remaining twenty each shall elect two senators.

The principle of equality of citizens -the Indian Constitution and German Basic Law represents a different principle that tries to balance the interests of the most populous states on the one hand and those of the less populous ones on the other.(provides a list of states and the corresponding seats allocated to each state)

Dilemma in Eth- Article 61(2) of the 1995 Constitution stipulates ‘each Nation, Nationality and People shall be represented in the House of Federation by at least one member. Each Nation or Nationality shall be represented by one additional representative for each one million of its population.’

the organizational principle of the HoF is the same with the HoPR except that there is a significant difference in the number of constituencies, 100,000 for the former and one million for the latter.

*the nearly majoritarian HoF in Ethiopia, minority protection in the US and Switzerland, the German and Indian Houses balancing the tension between territorial and citizen equality, in between.

SELECTION

In the Ethiopian situation Article 61(3) envisages two possibilities. Members of the House of Federation may be elected indirectly by the state legislatures or the state legislature may decide the members to be elected directly by the people. So far experience indicates that all members are indirectly elected by the states.

In the US (until 1913) and Switzerland, at least initially, representation is based on the territorial principle and theoretically speaking the two representatives are expected to stand for the interests of the states.

In the US ,Since then, it is doubtful whether the Senators represent the interest of the citizen, the state or some regional interest such as the mid west, east or the south, as the citizen directly elects them.

Article 61(1) of the Ethiopian Constitution provides that the HoF is composed of representatives of nations, nationalities and peoples.

POWERS

in the US and Switzerland where the two chambers are co-equal in power and are directly elected. in the United States all legislative powers are vested in both houses.

It has equal powers in all bills including money bills, except that it is introduced in the House of Representatives. the advice and consent of the Senate (two-thirds vote) is a requirement for the approval of treaties concluded by the President. The Senate has a similar role in the appointment of ambassadors, or other ministers, consuls, and judges of the Supreme Court.

The Swiss Council of States is equally empowered in all legislative affairs.

In the German federation a bill requires the consent of the upper chamber (*Bundesrat*) if it has financial implications or affects the duties of the *Länder*.

German federalism is often uniquely described as ‘executive federalism,’ signifying the fact that federal government is

predominantly responsible for legislating most of the laws while the states are responsible for implementing such laws.*Bundestag/lower house*

The second chamber of India (council of states) with subsidiary power and playing a precipitate function in the law-making process.

It enjoys an even greater authority, going beyond the co-equal legislative role, compared to the lower house. ‘bills shall not be deemed to have passed by the houses of parliament unless it has been agreed to by both houses. . .

the Ethiopian HoF has completely different role. It does not have a legislative function. Some of the important powers conferred to the House under Article 62 include constitutional interpretation (political rather than a judicial function) and organizing the Council of Constitutional Inquiry.

It is perhaps in the area of fiscal federalism that the HoF could be considered important.

THE ROLE OF THE HOF IN INTERGOVERNMENTAL RELATIONS

Fiscal federalism is governing the allocation of revenue and expenditure responsibilities between federal and state governments and it also

attempts to deal with the system of intergovernmental transfers between the federal government and the states as well as among the states.

HoF] shall determine the division of revenues derived from joint federal and state tax sources and the subsidies that the federal government may provide to the states.

the role of the HoF is double: it is the HoF that determines the criteria for the allocation of concurrent tax (Article 98) as well as on the subsidies that the states receive from the federal government.

Other powers of the HoF include: deciding issues related to self-determination of nations, nationalities and peoples, promoting the equality of the peoples; deciding disputes or misunderstandings that may arise among states; exercising concurrent powers together with the HoPR and this includes: the residue power on tax, election of the federal president, and constitutional amendment under Articles 104 and 105;

determining the division of revenues derived from joint federal and state tax sources and the subsidies that the federal government may provide to the states; determining civil matters which require the enactment of laws by the HoPR; ordering the federal government to intervene if any state threatens the constitutional order in violation of the constitution.

The main function of the House appears to be an institution for conflict resolution and adjudication of constitutional issues rather than a law-making organ.

*second chambers at *constituent units level* that take care of the interests of local minorities or indigenous people, on the one hand and a lower house that represents the interests of every citizen on the other, is vital.

Chapter Four

Forging Unity out of Diversity in Multicultural

Federations: The Ethiopian Experience

Federalism and the Accommodation of Diversity: The Ethiopian Experience

The federal system that started *de facto* since 1991 and *de jure* following the adoption of the 1995 constitution attempts to end the cycle of political crisis by decentralizing power and resources and by ensuring self rule to the ethno-linguistic groups at various levels.

Some of the features of the coming together include- the phrase ‘We the Nations, Nationalities and Peoples of Ethiopia ...

However, the overriding power of the federal government in practice, the limited role of the constituent states in influencing the federal law-making process, explains its 'holding together' aspect.

The Constitution attempts to balance the interest of maintaining national unity on the one hand and the ethno-linguistic groups demand for cultural preservation and distinctiveness on the other.

Distinct Features of the Federal System

***The Explicit Recognition of Nations/Nationalities as Building Bricks of the Federation and Its Implications**

Unlike many constitutions, the Preamble of the Const does not commence with the traditional constitutional formula of "we the people," but with "We the Nations, Nationalities, and Peoples of Ethiopia"

"All sovereign power resides . . . , right to self-determination, takes the territorial principle seriously, seven out of the nine constituent states (the only exceptions being the SNNPRS and Gambela) are named after the major nationalities that "dominate", AA & DD r less autonomous compared to the constituent states b/c accountable to z fed govt,

***Shared Rule**

***Unicameral Legislature/Adjudication of Disputes-** the second/upper chamber (HoF) is not part of the law making process at federal level. federal law does not need the consent of the HoF, to be a law.

the Ethiopian federal system departs from this trend and grants the HoF among other things with the power to interpret the Constitution, resolution of disputes among the regions, decide on intergovernmental subsidies and joint taxes.

Some of the Contending Views on the Federal System- contradictory perspectives

The first group-the “ethnic” federation as a sign of the first mark of disintegration.“regionally based ethnicity may reinforce the demands of some ethnic groups for more and more states and finally for secession.

The second group - the paradox between generously granted constitutional powers and a centralized federal system in practice resulting from centralized policy making process and a dominant ruling party system that is responsible for generating most of the policy documents.

The third groups -Ethiopia's multicultural and multi religious context, the present federal system is the only panacea to the country's age old political crisis as it provides a decisive remedy for Ethiopia's long-standing problem of the “nationality question”.

Federalism and the Treatment of Minorities in the Regions

The notion of majority and minority in the Ethiopian federal context is indeed confusing.

The minority are nationals of the state of residence and possess ethnic, linguistic or religious characteristics (*identity stuff*) that distinguish them from the rest of the population.

Chapter Five

Division of Legislative Powers

THE FORM AND SCOPE OF DISTRIBUTION OF LEGISLATIVE POWERS

By *forms of* distribution of legislative power we are referring to the ways in which these powers are constitutionally allocated between the federal government and the states. (the technique of allocation of power.)

While the *scope* of legislative powers refers to the areas and amount of jurisdiction assigned to each order of government. (the substance of power allocated)

The constitutional allocation of legislative power is defined on the basis of three categories, namely exclusive powers (of the federal government and/or of the states), shared powers and reserve powers.

the use of exclusive powers refers to the powers for which the federal constitution has created a monopoly, which either is in the hands of the federation or of the states.

-The Ethiopian Constitution in general follows the United States and Swiss forms of distribution of powers. According to Article 50(2) ‘the federal government and the states shall have legislative, executive and judicial powers.’

-Shared Powers

***framework legislation** has been prescribed for the exercise of a power, a special type of shared power exists that in principle grants the federal government the competence to issue general legislation in a specific policy field.

It is to regulate federation-wide standards while leaving the states room to legislate the details and to deliver the services in a manner adaptable to local situations.

Although it has traditionally been argued that the Ethiopian Constitution has no shared powers except in the area of taxation, it is clear that it provides some provisions dealing with framework powers. Art 55(6) the HPR is empowered to enact *civil laws*, w/c the HoF deems ‘necessary to establish and sustain one economic community’. (civil law is a matter reserved to the states.) & Art 51(2) and sub (3) versus 52(2) c, Articles 52(2) d, 55(2) a, and 51(5)

***concurrent powers** As one category of shared powers, it refers to powers attributed to both entities. the general thinking about shared powers has been that Article 52(1)

one author notes that there are no concurrent powers in Ethiopia except on tax matters. However, it is still possible to argue that even in other, non-tax fields, Eg The states may, however, enact penal laws too on matters that are not specifically covered by the federal penal legislation.

The Ethiopian Constitution is silent as far as the thorny issue of regulating the relationship between federal and state law in general and

in relation to shared powers in particular is concerned. (in case of conflict between state and federal law.)

two views- If one adopts the federal supremacy clause by default, then most of the principles stated in this section discussing shared powers in other federations, will hold true in Ethiopia as well.

But if one adheres to the ‘supremacy of nations, nationalities and peoples’ literally because of the principles stated on the preamble, the pretentious aggregate nature of the federation, Articles 8 and 39, then it may be difficult to state that federal law will pre-empt state law.

-Residual powers represent those powers not listed or partly listed by the constitution and assigned to either unit of government. The Ethiopian Constitution expressly confers residual powers on the states. **The** Constitution enumerates a list of seven jurisdictions given to the states in addition to the reserve clause. One may doubt the relevance of the enumeration of state powers as the states are granted reserve powers.

-frequency of federal intervention, the grounds for intervention and the effects of such intervention

(Art 359/2003) *federal government] shall deploy at the request of a state administration, federal defense forces to arrest a deteriorating security situation within the requesting state when its authorities are unable to control it.

* the HPR shall on its own initiative request a joint session of the HoF and of the HoPR to take appropriate measures when state authorities are unable to arrest violations of human rights within their jurisdiction.

*HoF shall order under Article 62(9) federal intervention if any state, in violation of this federal constitution endangers the constitutional order.

Chapter Six

Division of Executive Power and Intergovernmental Relations

DUAL VERSUS EXECUTIVE OR FUNCTIONAL FEDERALISM

federal systems enforce their laws and policies by setting up dual structures, federal and state institutions or by entrusting the state machinery with the power to enforce both federal and state laws.

executive power is co-extensive with the legislative power. FDREC states: ‘The federal government and the states shall have legislative, *executive* and judicial powers.

It is true that there are some federal executive organs organized throughout the country to enforce federal laws, eg ERCA, Post Office, Insurance, Banking, Tele, Public Prosecutor, Some Ministries.

Dual Federalism - represented by the United States federation, where the allocation of executive authority is in principle considered co-extensive with the distribution of legislative responsibilities.

it follows that not only legislative but also executive, financial and judicial powers should be divided between the federal government and the states so that each will act autonomously.

Executive Federalism - The second possible arrangement of the executive. Germany and Switzerland and to some degree in India.

administrative responsibility has not coincided with legislative authority. Administration for many areas of federal legislative authority is constitutionally assigned to the governments of the units.

federal govt is for the most part responsible for law-making while the states are for administering it.

THE SYSTEM OF INTERGOVERNMENTAL RELATIONS IN ETHIOPIA

***Delegation-** FDREC seems to provide for downward delegation only. It is silent as to whether the states can delegate their powers to the federal government.

the fear that upward delegation might affect the autonomy

***Co-operation through Executive Institutions**

The political relationship between the federal government and the states is regulated by both formal structures weakly defined in the constitution and various proclamations as well as practice outside the legal framework. Eg Ministry of Federal Affairs.

the federal government provides the emerging states with additional support and this placed them under the Prime Minister's scheme of formerly the Office for Regional Affairs and presently the Ministry of Federal Affairs, which oversees their political development.

the Ministry in its conflict handling power, there is certainly an overlap with what is stated under Articles 48 and 62(6) of the Constitution on the powers of the HoF. The general scope is that the HoF does the legal aspect of the conflict but the Ministry of Federal Affairs handles administrative, political and developmental affairs with the states.

Co-operation through Party Channels- not unique to the Ethiopian federation. A political party is expected to harmonize the policies of the federal government and constituent states.

If the officials of both sets of government are adherents of the same ideology or followers of the same leader or leaders, then they might be expected to pursue harmonious policies.

the EPRDF is controlling all the regional state governments in the Ethiopian federation; either directly through the member parties or indirectly through affiliated parties.

the party structure in Ethiopia undermines the federal division of power and subordinates the regional governments to the federal government, centralizing trend in the federal system, intergovernmental conflicts are rare, perhaps absent.

***Co-operation through the Process of Policy-Making**

states accept the economic, social and development plans issued by the federal government. In theory they can adapt the policies to fit their own circumstances but the federal government does play a key role in influencing through national policies.

Chapter Seven

Federalism and the Adjudication of Disputes

Constitutional Adjudication in Ethiopia: Exploring the Experience of the HoF

Art 62 and 83, the HoF is not only empowered to decide constitutional disputes but also to interpret the constitution.

The rationale can be gathered from the minutes of the Constitutional Assembly emanate from two sources. A) One is related to the framers view of the ‘nature’ of the constitution in general and to the role of the nationalities in particular.

The framers think that the new federal dispensation is the outcome of the ‘coming together’ of the nationalities. Indeed, it is clearly stipulated in the preamble and Article eight that the ‘nations, nationalities and peoples are sovereign.’ The Constitution is considered as the reflection of the ‘free will and consent’ of the nationalities. It is, in the words of the framers, ‘a political contract’ and therefore only the authors that are the nationalities should be the ones to be vested with the power of interpreting the constitution. To this effect, the HoF that is composed of the representatives of the various nationalities is expressly granted the

power to review the constitutionality of laws and of course other essential powers as well.

B) The second reason is related to the first. The framers were well aware of the fact that empowering the judiciary or a constitutional court may result in unnecessary ‘judicial adventurism’ or what some prefer to call ‘judicial activism’ in which the judges would in the process of interpreting vague clauses of the constitution put their own preferences and policy choices in the first place., this might result in hijacking the very document that contains the ‘compact between the nationalities’ to fit the judges’ own personal philosophies.

BOZ R FALSE B/C zen z time EPRDF was not in a position to believe in courts. It has had a great FEAR of courts b/c zey were z abusive machineries during z repressive military govt.

ORGANIZATION OF THE JUDICIARY IN A FEDERAL SYSTEM

the Ethiopian judicial system theoretically speaking is organized on a dual basis in which there are two parallel court systems, the federal courts and the state courts with their own independent structures and administrations.

There is a question as to whether the division of power inherent in federalism applies for judicial power to the extent of requiring each order of government to have its own court system.

On the one hand there is the view that state courts subject to review by the Supreme Court are sufficient to protect the interest of the federal government.

On the other hand, there is a view that federal courts like federal executive agents are desired to effectively implement the power of the federal government. If one takes the federal principle of division of power strictly, not only are legislative and executive functions divided between the federal government and the states, but judicial authority too is divided.

FDREC gives some hint about the organization of the judiciary. It states that supreme federal judicial authority is vested in the federal Supreme Court. It is only one Court with nation wide jurisdiction.

With the recent decision of parliament to establish inferior federal courts a full-fledged dual court structure is on its way, at least in five regional states. As a result there are inferior federal courts in some states while

the delegated power seems to continue in three other states, Oromia, Amhara and Tigray.

In a nutshell, there may obviously be, like other powers, exclusively federal, exclusively state and shared judicial powers.

JURISDICTION

The Ethiopian judicial system, compared to other federations, stands constrained in its jurisdiction.

Firstly, judicial powers are being taken away from the regular judiciary to special other tribunals whose constitutional status remains controversial.

despite the constitutional clause under Article 78(4) stipulating that ‘special or *adhoc* courts which take judicial powers away from the regular courts or institutions legally empowered to exercise judicial functions, there are controversial tribunals introduced from time to time by the federal legislature and they do seem to dismantle the courts jurisdiction.

(but still access to justice. It is stated ‘every one has the right to bring a justiciable matter to and to obtain a decision or judgment by, a court of law or any other competent body with judicial power)

While the tribunals are unavoidable they should either be autonomous or else the highest judicial organ as in the supreme court should exercise judicial power on specific grounds. The trouble in Ethiopia is that such tribunals are neither autonomous nor subject to review at a higher level.

although the judiciary arguably has power to interpret the constitution, it has no power of reviewing the constitutionality of laws.

the judicial branch's power of reviewing decisions of several other tribunals is far from clear and the Court has not yet established it beyond doubt.

The Power of Cassation

*The minutes of the Constitutional Assembly also suggest that the federal Supreme Court has the power of cassation not only over federal matters but also on state matters and even more interestingly the federal Supreme Court reviews state matters in which the state Supreme Court has rendered a final decision by way of cassation.

There is a contrary view saying practice should not justify the wrong interpretation of the law. Ethiopia has adopted a dual court structure and the practice distorts the structural set-up of the courts. This approach

forces one to interpret 'any court' under Article 80 of proc 25/96 (it must be limited to the delegated function of the state courts.)

Basing the principle of federalism, when a matter is assigned to belong to a state jurisdiction it is based on the view that the matter is of local rather than of national importance.

Guaranteeing uniformity is often limited to federal laws, and not to state laws.